

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MOROCCO

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Morocco, grounded in the environmental impact study system, the decision of environmental acceptability, the public inquiry and its observations register, and the constitutional right to a healthy environment

*This guide uses the Moroccan legal terms you will actually encounter (the *étude d'impact sur l'environnement*, the *décision d'acceptabilité environnementale*, the *comité national* and *comités régionaux*, the *enquête publique* and its *registre*, the *commissaire enquêteur*, the *recours pour excès de pouvoir*, and so on), each explained in plain language where it first comes up. Morocco's framework has been extended by later legislation on environmental evaluation and audit; the core mechanics below apply, but always check which texts are in force.*

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. French legal terms are given with a short English gloss, since the administration works in French and Arabic.

A note on money. Budgets in this guide are in dirhams (MAD). Every figure is indicative — Moroccan community campaigns are typically run at low cost, since the public inquiry is free to participate in and the decisive documents are administrative. Treat the ranges as a menu, not a bill.

A note on the calendar. The **enquête publique** is short and is announced locally. If a project near you has been announced, go to Section 4 first: the window for recording observations in the register is the moment your participation is legally required to be taken into account.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Morocco — and Moroccan law contains one provision that gives communities a genuine point of leverage: **no project subject to an environmental impact study may be authorised without a decision of environmental acceptability**. Under **Law 12-03 on environmental impact studies**, projects in the categories listed in the law's annexed nomenclature — classified establishments of the first category, infrastructure, industrial projects, agriculture, and aquaculture — must undergo an **étude d'impact sur l'environnement (EIE)**. The study is examined by a **committee**: the **national committee** for the largest projects, and a **regional committee** for

projects at or below an investment threshold of **200 million dirhams**. The committee gives its opinion on **environmental acceptability**, and the resulting **décision d'acceptabilité environnementale** must form part of the file for any authorisation. Without it, the authorisation has no proper foundation.

Around that sits a public procedure and a constitutional frame. Every project subject to an EIE must undergo an **enquête publique** — a public inquiry allowing the affected population to learn what is proposed and to formulate **observations and proposals**, recorded in a **register opened for that purpose**, which must be **duly taken into account** when the committee makes its final examination. The **2011 Constitution** recognised, for the first time in Morocco, a **right to a healthy environment**, obliging the State, public establishments and territorial collectivities to mobilise the means to give citizens access to it; it commits the State to preserving natural resources and **the rights of future generations**; and it guarantees a **right of access to information held by the administration**. The framework law on the national environment charter goes further still, establishing a **regime of environmental responsibility and a system of environmental control**.

That is a real toolkit. The honest counterweight is substantial. Access to the study itself is not reliably guaranteed in practice — there are documented cases where an EIE remained inaccessible to the public despite repeated requests to both the developer and the authorities, which turns the inquiry into a formality. The inquiry is local, short, and often thinly announced. Committee proceedings are not transparent, and the reasoning behind an acceptability decision is rarely visible. Morocco pursues very large investment programmes in energy, phosphates, tourism, ports and agriculture, and the administrative apparatus is oriented toward delivering them. And the space for sustained public protest around resource and industrial projects has at times been narrow, with prosecutions following major local movements.

What "winning" realistically means. Rarely a project abandoned outright. More often: observations that change the study's content or the conditions attached; an **acceptability decision refused, delayed, or conditioned**; a project relocated or redesigned; an authorisation **annulled by an administrative court** where the acceptability decision was absent or the inquiry defective; or a project that simply lapses — because an accepted project that has not begun within **five years** requires a **new impact study**. The realistic goal is to make the inquiry real, get your objections onto the register where they must be considered, and preserve a clean legal ground for the courts.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish whether the project requires an EIE, which committee decides, and when the inquiry runs.
2. **Documentation** — build a record strong enough for the register, the committee, and an administrative court.
3. **Local opposition** — organise so the register fills with substantive observations and the inquiry cannot be treated as a formality.
4. **Legal challenges** — use the inquiry, the acceptability requirement, and the administrative courts.
5. **Media strategy** — generate coverage that raises the cost and reaches lawyers and associations.

No single step wins alone. In Morocco the combination that works is **a well-used register plus a documented procedural defect**, held in reserve for the courts.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Morocco's system depends on documents the public cannot always obtain, an inquiry that can be run as a formality, and committees whose reasoning is not published. Assessing that honestly helps you choose the right tools: the strongest routes are to **demand access to the study**, to **fill the register with substantive, signed observations**, to **document exactly how the inquiry was conducted**, and to be ready to ask an **administrative court** to annul an authorisation resting on an absent acceptability decision or a defective inquiry. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately if an inquiry has been announced. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Morocco is a constitutional monarchy with **regions, provinces and prefectures**, and **communes**, alongside a strong appointed administration — the **wali** of the region and the **gouverneur** of the province, together with the **caïd** and local authorities at the base. Environmental assessment rests on **Law 12-03 on environmental impact studies**, its two implementing decrees of 2008, the **framework law on the national environment charter**, and later legislation extending environmental evaluation and audit.

The bodies that decide — and what each one controls

The department of environment. The government authority responsible for the environment, to which the impact-study committees are attached, and which administers the system.

The Comité National des Études d'Impact sur l'Environnement (national committee). Examines impact studies for the largest and most sensitive projects and gives its opinion on **environmental acceptability**.

The Comités Régionaux des Études d'Impact sur l'Environnement (regional committees). Examine impact studies for projects whose **investment threshold is at or below 200 million dirhams**, with certain exceptions reserved to the national committee, and give their opinion on acceptability. Their creation in 2008 decentralised the review process and, importantly, introduced **taking the affected population's views into account** in the evaluation. Establishing which committee is examining your project tells you where the decision is being made and where representations should go.

The wali and the gouverneur. The regional and provincial administrative authorities, who chair or convene the regional structures and under whose authority the **enquête publique** is organised locally.

The commune. Where the inquiry is publicised and the **register** is available for recording observations.

The sector authorities. Mining, energy, water, ports, tourism and urban planning authorities issue the underlying authorisations, which the acceptability decision conditions.

The administrative courts. Morocco has a dedicated system of **administrative tribunals** and administrative courts of appeal, before which an administrative decision may be challenged by an action for annulment for **excess of power (recours pour excès de pouvoir)**.

Which one is "yours"? Ask: is the project in the **nomenclature** requiring an EIE? Is its investment **above or below 200 million dirhams**, and therefore national or regional? Which **commune and province** will host the inquiry? Which **sector authorisation** is being sought, and does the file contain an acceptability decision? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under Law 12-03 the path is roughly:

1. **Is an EIE required?** The law's **annexed nomenclature** lists the project categories that must undergo an impact study: **classified establishments of the first category, infrastructure projects, industrial projects, agriculture, and aquaculture and fish farming**. A project that falls in the nomenclature cannot lawfully be authorised without going through the process.
2. **The impact study.** The developer commissions the **EIE**, describing the project, the receiving environment, the anticipated impacts, and the mitigation and monitoring measures proposed.
3. **The enquête publique.** Every project subject to an EIE must undergo a **public inquiry**, organised under the modalities set by decree. Its purpose is expressly to allow the **affected population to become acquainted with the project's potential impacts and to formulate observations and proposals**. A **register** is opened for the population to consult the file and record observations. **This is your formal moment**, and the law is explicit that what is recorded must be **duly taken into account** in the committee's final examination.
4. **Committee examination.** The **national or regional committee** examines the study, together with the outcome of the inquiry, and gives its **opinion on environmental acceptability**.
5. **The décision d'acceptabilité environnementale.** On the basis of that opinion, the decision issues. **Authorisation of any project subject to an EIE is subordinate to this decision**, which forms one of the documents in the authorisation application file. This is the pivot of the whole system: no acceptability decision, no lawful authorisation.
6. **Validity.** An accepted project must **begin within five years**; beyond that, it must undergo a **new impact study**. A project long approved and never started is therefore vulnerable.

7. **Later evaluation and audit.** Subsequent legislation was adopted to address gaps in the 12-03 system, extending environmental evaluation to **sectoral and regional policies and plans through strategic environmental assessment**, and subjecting industrial units and activities that were never assessed to **environmental audit** — worth checking, because it may give you a route where a project predates the impact-study regime.

The rulebook — the policies that decide the outcome

- **Law 12-03 and its 2008 decrees.** Was an EIE required and carried out? Was an **enquête publique** genuinely held, with the file available and a register open? Were observations taken into account? Was there a valid **acceptability decision** before authorisation? Has the five-year period lapsed?
- **The Constitution of 2011.** **Article 31** obliges the State, public establishments and territorial collectivities to mobilise all available means to give citizens access to conditions enabling them to enjoy the right to **water and a healthy environment**; **Article 35** commits the State to preserving natural resources and **the rights of future generations**; **Article 27** guarantees the **right of access to information held by the administration** and bodies with a public-service mission; **Article 13** commits public authorities to creating consultation bodies associating social actors with public policy; and **Article 133** allows a party to litigation to raise an **exception of unconstitutionality** where the law determining the outcome infringes constitutional rights.
- **The framework law on the national environment charter.** Sets out rights and duties relating to the environment and sustainable development, binds the State, collectivities and public establishments to environmental principles, and establishes a **regime of environmental responsibility and a system of environmental control** — together with environmental taxation and an ecolabel.
- **Sector law.** Mining, water, urban planning, coastal and classified-establishment rules each carry their own permits, and each is conditioned by the acceptability decision.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Morocco pursues very large national programmes — phosphates and mining, renewable energy, ports and industrial zones, tourism, and irrigated agriculture — often with foreign financing and strong political backing; the impact study is commissioned and paid for by the developer; committee proceedings are not public; and regional administrations are charged with attracting and delivering investment as well as regulating it. None of this is inherently unlawful, but it explains the default lean toward approval — and why the community's decisive levers are **the register, the documents, and the courts**.

The overseers — who watches the decision-makers

- **The administrative tribunals** — where an authorisation or decision may be annulled for excess of power, and the route Moroccan law expressly contemplates where the acceptability decision is missing.
- **The Conseil Économique, Social et Environnemental** — a constitutional body that may be consulted on questions of this kind and whose opinions carry weight.
- **The Cour des comptes and its regional chambers** — public money and the performance of local administration.
- **The national human rights institution and the mediation institution** — complaints about administrative conduct and rights.
- **Environmental and community associations** — Morocco has active associations, including coastal and local environmental groups that have pressed publicly for access to impact studies.

Naming and using the right body matters: in Morocco the most consequential early judgment is usually **whether a valid acceptability decision exists and whether the inquiry was genuinely held** — because those are the two facts a court can act on.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Moroccan and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Morocco sits inside the table: the system has a single structural weak point that favours communities — **an authorisation resting on no valid acceptability decision, or on a defective inquiry, can be annulled** — and everything else is about building toward that.

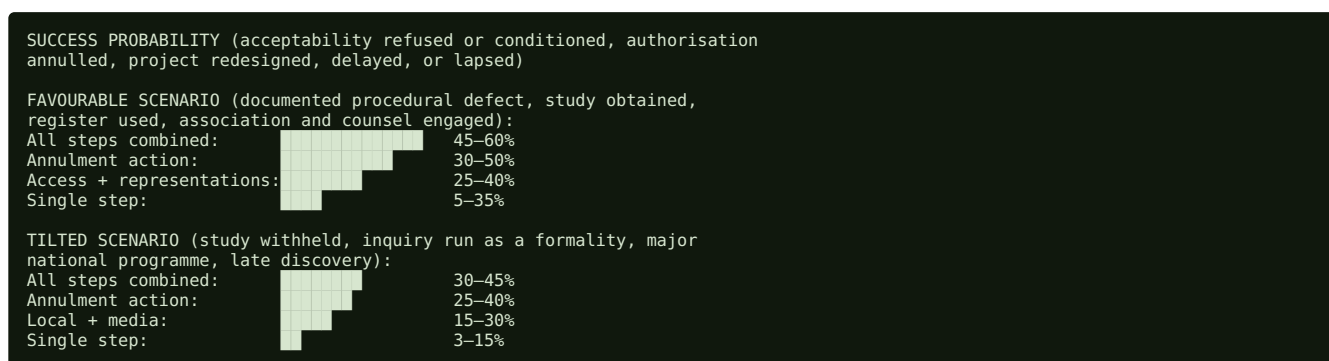
Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (MAD)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local opposition only	20-30%	6-18 months	low	Local and political pressure
Observations in the inquiry register	20-35%	during the inquiry	minimal	On record; must be taken into account
Demand for access to the impact study	25-40%	1-3 months	low	The document obtained; the case becomes possible
Representations to the committee	20-35%	1-4 months	low	Conditions imposed; acceptability delayed
Complaint against works under way	25-40%	3-18 months	low-moderate	Works examined; authorisation questioned
Annulment action (administrative court)	30-50%	12-36 months	moderate	Authorisation annulled
Five-year lapse argument	20-35%	variable	low	New impact study required
Media only	15-25%	1-6 months	low	Public knows; pressure rises
Docs + local opposition + media	30-45%	6-18 months	low-moderate	Pressure plus a stronger case
All steps combined	45-60%	12-36 months	moderate	Acceptability refused or conditioned, authorisation annulled, project redesigned, delayed, or lapsed

Key insight: all steps together are considerably more effective than any single one — and the Moroccan multiplier is the **acceptability decision requirement**, because it converts an environmental argument into a question of legal validity that a court can test. The distinctive advantages are that requirement, the **register of observations** which must be taken into account, a constitutional **right to a healthy environment** and **right of access to administrative information**, an express complaint route **even against works already stopped**, and the **five-year lapse** rule. The distinctive disadvantages are that the study may be hard to obtain, the inquiry can be run as a formality, and committee reasoning is not published.

A note on legal cost: recording observations in the register, requesting access to documents, and complaining to the administration cost almost nothing. An annulment action before an administrative tribunal is moderate in cost and is the procedure Moroccan law contemplates for exactly this situation. The expenditure that most changes outcomes is expert review of the impact study, and a lawyer consulted early rather than after authorisation.

Effectiveness Visualization



How to read this honestly. In Morocco the strongest positions are **documentary and procedural**: an authorisation granted where **no acceptability decision exists**, an **inquiry that was not genuinely held** or where the file was never made available, a **register that was never opened or never considered**, a project in the **nomenclature that never underwent a study at all**, or an approval that has **lapsed after five years without works starting**. Each of these is a question of legality rather than of opinion, which is precisely what an administrative court can decide. What is much harder is arguing that a properly-processed project is simply a bad idea, and harder still to fight a project whose study you cannot obtain — which is why the access demand ranks so high in the table. Judge success accordingly: **conditions, delay, redesign, lapse, and annulment are the wins available here.**

Step Importance Ranking (When All Combined)

1. **Documentation and access** — first in Morocco, because without the study and the record of the inquiry there is no case, and obtaining them is itself contested.
2. **Legal challenges** — the acceptability requirement and the annulment action.
3. **The inquiry register** — cheap, legally weighted, and the source of the procedural record.
4. **Local opposition** — filling the register, producing complainants, and creating political cost.
5. **Media** — which reaches associations and lawyers and makes a quiet inquiry visible.

Winning Moroccan campaigns combined a copy of the study, a well-used register, a documented account of how the inquiry was actually run, and counsel engaged before authorisation issued.

What Moroccan Campaigns Actually Show

A few patterns recur. **The acceptability decision is the hinge** — the law makes authorisation of any project subject to an impact study **subordinate** to that decision, and expressly contemplates that a court may **annul an authorisation founded on its absence**, on a complaint brought by any natural or legal person with standing or interest — **even where the works have already stopped**. **The inquiry is legally weighted but practically fragile** — the population is entitled to consult the file and record observations in a register, and those observations must be duly taken into account, yet access to impact studies has proved unreliable in practice: in one documented coastal case an impact study remained inaccessible despite repeated requests by an environmental association to both the developer and the authorities. **Decentralisation changed where decisions are made** — the 2008 decrees moved examination of projects at or below **200 million dirhams** to **regional committees** and, in doing so, brought the affected population's views formally into the evaluation. **Time can defeat a project** — an accepted project that has not begun within **five years** must undergo a **new impact study**. **And the constitutional frame has strengthened** — since 2011 the right to a **healthy environment** and the **right of access to administrative information** are constitutional, and the framework law establishes a regime of **environmental responsibility and control**. The through-line: **get the document, use the register, and test the legality**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: the exact location and extent, the project type and stage, and what is there now — **irrigated land and orchards, pasture and rangeland, oases and palm groves, wadis, springs and the water table, coastline and dunes, forest, and archaeological or religious sites**. Obtain the **EIE** and list every admitted impact with its page reference. Pay particular attention to **water**, which in Morocco is the decisive resource question — abstraction, the water table, and effects on downstream users — and to **dust, tailings and discharges** for industrial and mining projects.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether the project falls in the **nomenclature** requiring an EIE, and in which of the five categories; (b) whether its investment places it before the **regional committee (at or below 200 million dirhams)** or the **national committee**; (c) which **commune, province and region** host the **enquête publique**; (d) which **sector authority** will issue the underlying authorisation; and (e) whether a **décision d'acceptabilité environnementale** already exists, and when it was issued.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: observations that change the study or the conditions; an **acceptability decision refused, delayed, or conditioned**; a **sector authorisation withheld** for want of the acceptability decision; an **annulment** by the administrative tribunal; or the **five-year lapse** requiring a fresh study. Map them and pursue at least two in parallel.

Question 4: When Is the Decision Final?

Diarise the deadlines. The **enquête publique** is announced locally and runs for a limited period — find the announcement, note where the **register** is held and until when, and get observations in before it closes, because the legal obligation to take them into account attaches to what is recorded there. After that, the timing that matters is the **authorisation**: an annulment action before the administrative tribunal must be brought within the period prescribed for actions for excess of power, which is short, so **consult a lawyer as soon as an authorisation is published or works begin**. Separately, note the date of any existing acceptability decision, because the **five-year clock** may already be running in your favour.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the developer and any parent or foreign partner; whether the project forms part of a national programme; what public land, water allocation, or concession is involved; and which authorisations have already been granted. Use public sources — the **Bulletin Officiel**, the commercial registry, communal deliberations, and the impact study itself. Build a dated, sourced timeline, and keep to documented facts rather than allegations.

Output of Step 1: a one-page fact sheet with the project's exact description, its category and committee, the inquiry dates and register location, the sector authorisation sought, whether an acceptability decision exists and its date, and the money map.

Worked example: which lever is actually open

Suppose a quarry and processing plant is proposed upstream of an oasis, drawing on the same water table as the village's wells, and a notice appears announcing a public inquiry at the commune. Working the questions: **Q1** — the wells, the palm grove, and the wadi are affected; you photograph and record them. **Q2** — a quarry with processing is likely within the nomenclature; you establish the investment scale to see whether the **regional committee** (at or below 200 million dirhams) or the **national committee** will examine it, and confirm the commune hosting the inquiry. **Q3** — the live levers are: **obtaining the impact study** and, if it is withheld, saying so in writing, since access has been a documented weakness; **filling the register** with substantive, signed observations, which must be taken into account; **representations to the committee** on the water table and downstream users; and, if authorisation issues without a valid **acceptability decision** or after a defective inquiry, an **annulment action**. **Q4** — you note the register's closing date and, once any authorisation appears, consult a lawyer immediately. **Q5** — the Bulletin Officiel and the commune's deliberations show what has already been granted. In an afternoon you know that **the study, the register, and the acceptability decision are the campaign**.

STEP 2: DOCUMENTATION

Documentation in Morocco has an unusual first task: **obtaining the document at all**. The impact study is the foundation of every argument you might make, and access to it has proved unreliable in practice — there are documented cases of an EIE remaining inaccessible despite repeated requests to both the developer and the authorities. So the documentation phase begins with a demand, and the response — or the silence — becomes evidence in its own right.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project.

Water first. Document wells, springs, the water table where you know it, wadis and seasonal flows, irrigation channels and **seguías**, and the households, orchards and livestock depending on each. Record depths and yields if the community knows them, and photograph with dates. In Morocco water is the decisive resource question in most conflicts, and community knowledge of a falling table is often the only long-run record that exists.

Land and cultivation. Document irrigated land, orchards and palm groves, rangeland and pasture, and the households working them — including whether the land is private, **collective**, or otherwise held, since the tenure position affects who must be consulted and compensated.

Coast, forest, and sensitive sites. Document coastline, dunes, forest, and any archaeological or religious site, with dated photographs and locations.

Homes, health, and settlement. Document dwellings and their distance from the works, the population, and existing health conditions where dust or discharge is at issue.

How to hold it. Keep everything dated and located, and hold it collectively with copies outside the village, so the record does not depend on one person.

LAYER 2: STUDY AND PROCEDURE ANALYSIS

Show what the project would do, and whether the process has been properly run. Catalogue four things:

1. **Access.** Did you obtain the impact study? From whom, when, and after how many requests? Where the study was withheld, record every request and every refusal or silence, with dates — because an inquiry in which the population could not consult the file is not the inquiry the law requires.
2. **The study's contents and gaps.** Mine the EIE for admitted impacts with page references, and identify omissions — water balance and effects on the table and downstream users, cumulative effects with other projects in the same basin, alternatives not seriously considered, and monitoring measures left vague.
3. **The inquiry as actually conducted.** Record how the inquiry was announced and where; whether the **register** was genuinely available, at what hours and at which office; whether the file was there to consult; how many people were able to record observations; and whether anyone was discouraged. These procedural facts are frequently your strongest material.
4. **The acceptability position.** Establish whether a **décision d'acceptabilité environnementale** exists, its date, and whether the sector authorisation was granted before or after it — and if an acceptability decision is more than **five years** old with no works started, note that a new study is required.

Get expert eyes on it. A critique carries far more weight before a committee when a qualified professional has signed it. Moroccan universities and engineering schools, hydrogeologists, and national and local environmental associations are realistic sources. For water-table and abstraction questions in particular — the recurring core of Moroccan disputes — an independent hydrogeological opinion is worth more than any amount of general objection.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, which is what makes the constitutional right to a healthy environment concrete:

- **Health and water access** — households whose drinking or irrigation water is affected, distances to alternative sources, dust exposure and respiratory complaints.
- **Livelihoods** — orchards, palms, market gardening, livestock, fishing and small trade at risk, quantified per household where you can.
- **Community and heritage** — displacement, loss of collective land use, and damage to religious or archaeological sites.

Package this layer twice: a rigorous version in **French** for the committee, the administration and any court, and a plain-language version in **Arabic and, where appropriate, Amazigh** for community meetings and for people recording observations in the register.

How to Structure Your Documentation

- **Phase 1: Access and baseline (Weeks 1-3)** — demand the study in writing; photograph water, land and settlement.
- **Phase 2: Inquiry (during the enquête publique)** — record how it is run, and file substantive observations in the register.
- **Phase 3: Analysis (Months 1-3)** — the technical critique, with professional sign-off, and representations to the committee.
- **Phase 4: Legality (ongoing)** — track whether and when the acceptability decision and the authorisation issue, and preserve the ground for annulment.

Common Documentation Pitfalls (What Fails)

- **Not demanding the study in writing** — the refusal or silence is itself evidence, and only a written request creates it.
- **Missing the register** — the legal duty to take views into account attaches to what is recorded there.
- **Not recording how the inquiry was run** — where the file was, when it was open, who could actually reach it.
- **Only environmental data** — water access, health and livelihood evidence is what gives the constitutional argument content.

- **Ignoring the dates** — the acceptability decision's date can hand you the five-year lapse.
- **Unsigned technical claims** — get professional review of anything the committee must weigh.

Documentation Budget Breakdown (MAD)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Written requests, copies, postage	minimal	modest
Photography, mapping, field records	minimal	modest
Hydrogeological or technical review	often free via association	moderate
Water sampling and analysis	modest	moderate
Legal advice and court filing	modest	moderate
Translation and printing	modest	modest

Most of this is inexpensive. Spend where it counts: an **independent water opinion** and **early legal advice**, which together decide most Moroccan cases.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Moroccan case is documentary — and the campaign often turns on whether you can get the documents at all. Be formal, be persistent, and keep proof of every request.

The impact study. Request it from the **developer**, from the **department of environment** and its regional service, and from the **commune** and the **province** hosting the inquiry. Make every request **in writing**, keep proof of delivery, and record every refusal or non-response.

The inquiry file and register. During the inquiry, the file should be consultable and the **register** available for observations. Photograph the notice, note the location and opening hours, and — if you can — obtain a copy or photograph of the register pages containing the community's observations, because these are the evidence that observations were made.

The acceptability decision. Ask, in writing, whether a **décision d'acceptabilité environnementale** has been issued for the project, on what date, and on which committee's opinion. This single question is the most consequential you will ask.

The sector authorisation. The mining, industrial, urban planning, water or coastal authorisation — and, critically, whether the file contained the acceptability decision.

Official publication and communal records. The **Bulletin Officiel** for texts and certain decisions, and the **deliberations of the communal council**, which frequently record what was approved locally and when.

Company and financing records. The commercial registry for the developer and its parent, and any public financing or concession.

How to force a document open. Morocco's Constitution guarantees a **right of access to information held by the public administration**, elected institutions and bodies with a public-service mission, and there is dedicated access-to-information legislation giving effect to it, with designated officers and a route of appeal. Cite it explicitly, address the designated officer, and appeal a refusal rather than accepting it — the template at Section 8E does this. Where access is refused, that refusal is itself material for the inquiry record and for any later action.

Free and low-cost help. Morocco has national and local environmental associations — including coastal and community groups that have publicly pressed for access to impact studies — alongside university researchers and lawyers who take administrative cases. **Approaching an association early is the highest-value single step**, because they know how to obtain the study and how the inquiry should be run.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the sector authority and the committee level, and the local-ally entries point you to the associations and lawyers already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Morocco, organising has one overriding purpose during the decisive weeks: **to fill the register**. The law gives the affected population the right to consult the file and record **observations and proposals**, and requires those observations to be **duly taken into account** in the committee's final examination. A register containing three vague complaints can be dismissed; a register containing eighty signed, specific, locally-grounded observations about the water table, the orchards and the dust cannot be, and it becomes the backbone of everything that follows.

Three principles carry special weight here: **speed and the register** (the inquiry is short and local, and what is written in it is what the law obliges the committee to consider); **specificity over volume alone** (a hundred identical sentences count for less than fifty different ones naming particular wells, plots and households); and **working through recognised local structures** — communal councillors, agricultural and water-user associations, cooperatives, and neighbourhood and village representatives — which is both effective and, in a country where large-scale protest around resource projects has sometimes been met with prosecutions, the safer route.

PHASE 1: FOUNDATION (Weeks 1-3)

Step 1a: Start with the most affected — and demand the study. Reach the households whose water, land, or homes are at stake, and in the same week send a **written request for the impact study** to the developer, the environment department, and the commune. Photograph the wells, the orchards, and the site.

Step 1b: Affinity groups by concern. Let people join through what they care about — water and wells, orchards and palms, pasture, dust and health, the coast. Water-user associations and agricultural cooperatives are ready-made structures with standing in the community.

Step 1c: Contact an association and, if possible, a lawyer. National and local environmental associations know how the inquiry should be run, how to obtain the study, and what the acceptability decision means. Engaging them before authorisation is far more valuable than after.

PHASE 2: PUBLIC LAUNCH (During the inquiry)

Step 2a: Find and publicise the inquiry. Locate the notice, the **register**, its location and its opening hours, and tell the community — clearly, in Arabic and where appropriate Amazigh — where and by when observations must be recorded.

Step 2b: Prepare an observation guide, not a form. Give people a short guide listing the points that matter — the well, the plot, the orchard, the road, the dust, the water table — and encourage each person to write **their own** specific observation and sign it. Specificity is what makes the register hard to set aside.

Step 2c: Organise attendance at the register. Arrange transport and accompaniment so that older residents, women, and people from outlying douars can reach the office within the opening hours. Where the file is not actually available, **record that fact in writing** to the authority the same day (Section 8C).

Step 2d: Photograph the process. The notice, the office, the register, the dates. This is evidence.

PHASE 3: COALITION EXPANSION (Months 1-4)

Step 3a: Broaden the alliance. Bring in neighbouring communes and downstream users of the same water, water-user and agricultural associations, cooperatives, professional bodies and academics, communal councillors, and national environmental associations.

Step 3b: Coalition agreements. Agree who represents the community, who holds the documents, who signs written requests and complaints, and who speaks publicly. Where an association will act, agree how the community's mandate is recorded.

Step 3c: Make representations to the committee. Once the inquiry closes, send a reasoned submission with the technical review to the department of environment and the relevant **committee**, referring to the observations recorded in the register and asking that acceptability be refused or strictly conditioned (Section 8D).

PHASE 4: SUSTAINED PRESSURE (Months 3-12)

Step 4a: Track the decision. Ask, in writing and repeatedly, whether the **acceptability decision** has issued and on what date, and whether any sector authorisation has been granted (Section 8E). The answer determines everything that follows.

Step 4b: Escalate lawfully. Where an authorisation appears without a valid acceptability decision, or after an inquiry that could not have complied with the law, instruct counsel promptly for an **annulment action**, and consider the express complaint route against works under way.

Step 4c: Public actions and media — carefully. Petitions, communal council interventions, press coverage and peaceful gatherings are used and effective. Take advice before demonstrations, keep everything lawful and orderly, avoid confrontation at project sites, and be aware that large-scale protest movements around resource projects have in some cases been followed by prosecutions. The legal and documentary route is both safer and, in this system, sharper.

Worked example: a community that unlocks the strong levers

A douar learns that a quarry and plant will draw on the same aquifer as its wells, and that a public inquiry is open at the commune for a short period. Anger is immediate and someone proposes a road blockade — the course most likely to end badly. What converts the anger into force happens differently. First, three residents go to the commune the same week, ask to consult the **impact study**, and — finding it unavailable — put the request **in writing** to the developer, the environment department and the commune, keeping proof; the silence that follows becomes part of the case. Second, they locate the **register**, note its hours, and organise transport so that seventy households can reach it, each recording a **specific, signed observation** naming their well, their plot, and what they stand to lose. Third, they photograph the notice, the office and the register. Fourth, they approach an **environmental association**, which supplies a hydrogeological review of the water balance and helps draft representations to the **committee** asking that acceptability be refused. Fifth, they ask in writing whether a **décision d'acceptabilité environnementale** has issued and on what date — the single question that determines the legal position. When an authorisation later appears, counsel has a clean ground: the population could not consult the file the law says they may consult, and the observations recorded were never answered. The lesson generalises: **in Morocco, the written request you send and the register you fill in the first three weeks are what make the committee submission and the annulment action possible later.**

Opposition Building Budget: Year-Long Campaign (MAD)

Low. The recurring costs are transport to the commune and the provincial centre, copying and postage for written requests, printing observation guides and translations, meetings, and communications. Technical review is often provided by associations or university contacts. Keep transparent accounts, and reserve what you can for a **hydrogeological opinion** and **legal fees**, which are where money genuinely changes outcomes here.

STEP 4: LEGAL CHALLENGES

Morocco's system contains one clean legal hinge — **no acceptability decision, no lawful authorisation** — and a public procedure whose defects are documentable. The strategy follows from that: use the procedure fully, record everything, and preserve the ground on which a court can act. Three tracks — the inquiry and the committee, the administrative route, and the courts.

TRACK 1: THE INQUIRY AND THE COMMITTEE (the front door)

- **Demand access to the impact study.** In writing, to the developer, the environment department and the commune, invoking the constitutional **right of access to information held by the administration** and the access-to-information legislation. Where access is refused or ignored, that record is itself evidence that the inquiry could not have complied with the law.
- **Use the register.** Ensure the affected population records **specific, signed observations and proposals**. The law is explicit that these must be **duly taken into account** in the committee's final examination — so a register full of concrete, local, evidenced points constrains the committee in a way that general opposition does not.
- **Document how the inquiry was run.** The notice, the location, the opening hours, whether the file was actually available, who could reach it. A public inquiry in which the population could not consult the study is defective, and that is a ground.
- **Make representations to the committee.** After the inquiry, send a reasoned submission — with a professional technical review — to the department of environment and the **national or regional committee** examining the project, asking that **environmental acceptability be refused** or made subject to strict conditions.

TRACK 2: THE ADMINISTRATIVE ROUTE (pressing the decision)

- **Establish the acceptability position.** Ask in writing whether a **décision d'acceptabilité environnementale** exists, its date, and the committee that advised. Everything downstream depends on the answer.
- **Check the sector authorisation file.** The acceptability decision must be **one of the documents in the authorisation application**. An authorisation granted without it is vulnerable.
- **Run the five-year argument.** An accepted project must **begin within five years**; beyond that a **new impact study** is required. Where an old acceptability decision is being relied on for works starting now, say so formally.
- **Complain about works under way.** Moroccan law expressly contemplates that **any natural or legal person having standing or interest**, as well as the environmental authority, may complain about works — **even where the works have been stopped**. Use it: a formal complaint puts the legality of the works in issue.

TRACK 3: THE COURTS

- **Annulment before the administrative tribunal.** An action for **excess of power** to annul the authorisation. The law contemplates precisely this outcome: the court may **annul the authorisation where it is founded on the absence of the acceptability decision**. Other grounds include a defective or non-existent public inquiry, failure to take recorded observations into account, and a project in the nomenclature that never underwent a study at all. Time limits for such actions are short — instruct counsel as soon as an authorisation is published or works begin.
- **Constitutional arguments.** The **right to a healthy environment**, the State's duty to preserve natural resources and **the rights of future generations**, and the **right of access to administrative information** — together with the possibility, in litigation, of raising an **exception of unconstitutionality** where the governing law itself infringes constitutional rights.
- **The framework law.** Its **regime of environmental responsibility and system of environmental control** supports arguments about liability and enforcement.
- **Interim protection.** Ask counsel about suspending execution where irreversible works — clearing, quarrying, abstraction — are imminent.

The three legal challenge types

TYPE 1: THE INQUIRY AND THE COMMITTEE (the front door)

Access demands, the register, documenting the inquiry, and representations seeking refusal of acceptability.

TYPE 2: THE ADMINISTRATIVE ROUTE (pressing the decision)

Establishing whether an acceptability decision exists, checking the authorisation file, the five-year lapse, and the complaint against works.

TYPE 3: THE COURTS

Annulment for excess of power — above all where the authorisation rests on an absent acceptability decision or a defective inquiry — with constitutional arguments and interim protection.

Legal Strategy Decision Tree

1. **Is an inquiry open?** → Get the study, fill the **register** with specific signed observations, and document how the inquiry is run.
2. **Was the study unavailable?** → Put the refusal in writing and preserve it; it undermines the entire inquiry.
3. **Has an authorisation appeared?** → Ask whether a valid **acceptability decision** exists, and instruct counsel promptly.
4. **Is the acceptability decision more than five years old with no works?** → Argue that a **new impact study** is required.
5. **Are works under way?** → Use the express **complaint route**, which applies even if the works have stopped.

Litigation Success Factors

A written record of every request for the study and every refusal; the register and, ideally, copies of the observations recorded in it; a documented account of how the inquiry was actually conducted; proof of whether and when the acceptability decision issued; professional technical review, especially on water; standing, which Moroccan law frames broadly as any person with an interest; and prompt instruction of counsel.

What to Avoid: Legal Failures

Relying on oral requests for the study; letting the inquiry pass without filling the register; failing to record how the inquiry was run; assuming an authorisation is lawful without asking about the acceptability decision; missing the short period for an annulment action; and escalating to confrontation at the site, which risks prosecution and forfeits the legal high ground.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Morocco.

Authorisation granted with no valid acceptability decision → annulment (the strongest ground). Feed it with: the authorisation, and the administration's answer — or silence — on whether an acceptability decision exists.

The study was never made available during the inquiry → defective inquiry. Feed it with: your dated written requests, the refusals or non-responses, and the record of what was at the commune.

Observations recorded but never addressed → failure to take views into account. Feed it with: the register entries and the absence of any reasoned response.

A project in the nomenclature with no impact study at all → unlawful authorisation. Feed it with: the project's category and the absence of any study or decision.

Acceptability decision older than five years with no works begun → new study required. Feed it with: the decision's date and evidence that works have only now started.

Threat to wells, the water table, or downstream users → the substantive case, and the constitutional right. Feed it with: the hydrogeological review, the wells and households affected, and the study's own water balance.

Cumulative effects with other projects ignored → deficient study. Feed it with: the map of other operations in the same basin or coastline and the study's silence.

The pattern: **lead with the acceptability decision and the conduct of the inquiry**, support with water evidence, and preserve every written request and refusal.

STEP 5: MEDIA STRATEGY

Media matters in Morocco because the inquiry is local and quiet, because coverage is often how a community reaches a national association or a lawyer, and because reputational exposure matters to developers with international financing or export markets.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the page of the study admitting the impact — or, just as tellingly, **your written requests for a study you were never given** — a named farmer whose well is at stake, a photograph of the palm grove, and the inquiry's closing date. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented procedural failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Morocco: **water — wells, the water table, and oases, coastline and dunes**, and **a public inquiry the public could not actually take part in**, which is both newsworthy and directly useful to your legal case.

Know the Outlets That Cover This Beat

Map the national press in **Arabic and French** and their environment and regional correspondents, online outlets covering

local disputes, regional radio, and — where a project has foreign financing or an export market — international outlets.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to residents, and be scrupulously accurate: one unsupported claim is used to dismiss everything else, and unproven public accusations carry legal risk.

Why media matters even when it doesn't make the front page

Coverage reaches the association that will supply the technical review, the lawyer who will bring the annulment action, and the academic who will assess the water balance. It also makes a quiet local inquiry visible in time for people to reach the register — which, in a system where the register is the legal hook, is itself a decisive contribution.

Sample Media Timeline

Launch with the inquiry and its closing date; refresh at each milestone — the refusal of access, the number of observations recorded, the representations to the committee, the acceptability decision, the authorisation, and the court filing.

Media Measurement

Track coverage, but measure what matters: whether the study is released, whether the register fills, whether the committee responds, whether an association or lawyer engages, and whether works have started.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Write to the administration in **French or Arabic**, deliver by hand against a stamped receipt (**décharge**) or by registered post with acknowledgement, and keep proof of every request — in Morocco the record of what you asked for and never received is frequently your best evidence. Have a lawyer review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Commune, Province]: public inquiry into [project] closes [date] — the impact study has still not been made available

Dear [name],

A public inquiry into [project] at [location] is open at the commune of [name] until **[date]**. [Number] households of [douar/quartier] draw water from [wells/spring/seguia] within [distance] of the site.

We requested the **étude d'impact sur l'environnement** in writing on [dates] from the developer, the environment department and the commune. [We have received no reply / access was refused.] Copies of our requests are attached.

Under Law 12-03 the population is entitled to consult the file and record observations in a register, and those observations must be taken into account. We have recorded [number] observations so far.

I can take you to the site and connect you with affected farmers. Could we speak this week?

[Name] · [Association / community group] · [phone] · [email]

8B. Written request for the impact study

Objet : Demande de communication de l'étude d'impact sur l'environnement — projet [nom], commune de [nom]

À : [le pétitionnaire / le Département de l'Environnement / le Président du Conseil communal de [nom] / Monsieur le Gouverneur de la province de [nom]]

Nous, habitants de [douar/quartier], commune de [nom], sollicitons la communication de **l'étude d'impact sur l'environnement** relative au projet [nom], actuellement soumis à enquête publique / autorisé le [date].

Cette demande est fondée sur le droit d'accès à l'information détenue par l'administration publique, garanti par la Constitution et par la législation relative au droit d'accès à l'information, ainsi que sur le droit de la population concernée de prendre connaissance des impacts potentiels du projet et de formuler ses observations.

Nous vous prions de nous indiquer le lieu, les jours et les heures de consultation du dossier, et de nous délivrer copie de l'étude, le cas échéant contre paiement des frais de reproduction.

À défaut de réponse dans le délai légal, nous exercerons les voies de recours prévues.

[Noms, qualité, adresse, date — conserver la décharge]

8C. Report that the file was not available during the inquiry

Objet : Enquête publique relative au projet [nom] — indisponibilité du dossier

À : [Monsieur le Gouverneur de la province de [nom] ; le Président du Conseil communal ; le Département de l'Environnement]

Nous vous informons que, le [date] à [heure], nous nous sommes présentés à [lieu] afin de consulter le dossier de l'enquête publique relative au projet [nom] et de consigner nos observations sur le registre.

[Le dossier n'était pas disponible / le registre n'était pas ouvert / les horaires indiqués n'étaient pas respectés / aucun avis n'a été affiché à [lieu]].

Nous rappelons que l'enquête publique a pour objet de permettre à la population concernée de prendre connaissance des impacts du projet et de formuler ses observations et propositions, lesquelles doivent être dûment prises en considération.

Nous vous prions de bien vouloir régulariser cette situation et, le cas échéant, de proroger la durée de l'enquête. Copie de la présente est conservée.

[Noms, adresse, date]

8D. Representations to the committee seeking refusal of acceptability

Objet : Observations sur le projet [nom] — demande de refus de l'acceptabilité environnementale

À : Monsieur le Président du Comité [National/Régional] des Études d'Impact sur l'Environnement, [région] ; copie : Département de l'Environnement

Les habitants de [douar/quartier] et l'association [nom] présentent les observations suivantes, qui complètent les [nombre] observations consignées au registre de l'enquête publique : 1. **Eau.** [Le projet prélève / affecte la nappe alimentant [nombre] puits et [surface] d'irrigation ; l'étude ne présente pas de bilan hydrique crédible — voir avis technique joint.] 2. **Terres et cultures.** [Palmeraie / vergers / parcours affectés, ménages concernés.] 3. **Poussières et rejets.** [Distances aux habitations, populations exposées.] 4. **Effets cumulatifs.** [Autres projets dans le même bassin / littoral, non évalués ensemble.] 5. **Procédure.** [L'étude n'a pas été mise à disposition du public malgré nos demandes des [dates].]

Nous demandons que l'**acceptabilité environnementale soit refusée**, ou à défaut assortie de conditions strictes et vérifiables, et que réponse soit donnée aux observations consignées.

[Signataires, association, date, pièces jointes]

8E. Request confirming whether an acceptability decision exists

Objet : Demande d'information — décision d'acceptabilité environnementale, projet [nom]

À : [Département de l'Environnement / l'autorité ayant délivré l'autorisation]

Nous sollicitons communication des informations suivantes : 1. si une **décision d'acceptabilité environnementale** a été délivrée pour le projet [nom], et à quelle date ; 2. l'avis du comité [national/régional] sur le fondement duquel elle a été prise ; 3. l'autorisation délivrée pour ce projet, sa date, et la liste des pièces du dossier de demande ; 4. le rapport de l'enquête publique et les suites données aux observations consignées.

Nous rappelons que l'autorisation de tout projet soumis à étude d'impact est subordonnée à la décision d'acceptabilité environnementale.

[Nom, adresse, date]

8F. Complaint concerning works under way

Objet : Plainte relative aux travaux entrepris pour le projet [nom]

À : [Monsieur le Gouverneur / le Département de l'Environnement / l'autorité compétente]

Nous, [habitants / association [nom]], ayant qualité et intérêt à agir, portons plainte concernant les travaux entrepris à [lieu] depuis le [date] pour le projet [nom].

Nous exposons que : [aucune décision d'acceptabilité environnementale ne nous a été communiquée malgré nos demandes des [dates] / la décision invoquée date de plus de cinq ans sans commencement des travaux / l'enquête publique n'a pas permis la consultation du dossier].

Nous demandons la vérification de la régularité de l'autorisation et, le cas échéant, les suites qu'appelle l'absence de décision d'acceptabilité environnementale. Nous joignons nos pièces.

[Signataires, date, contact]

8G. Press release (effective)

COMMUNIQUÉ — [date]

Les habitants de [commune] demandent le refus de l'acceptabilité environnementale du projet [nom]

Les habitants de [douar/quartier], commune de [nom], ont consigné **[nombre] observations** au registre de l'enquête publique relative au projet [nom], et ont saisi le Comité [national/régional] des études d'impact pour demander le **refus de l'acceptabilité environnementale**.

« [Citation brève d'un habitant] », déclare [nom]. Le projet affecte [les puits / la palmeraie / le littoral] dont dépendent [nombre] familles. [L'étude d'impact n'a pas été mise à leur disposition malgré des demandes écrites des [dates].]

Contact : [nom, téléphone]. Documents, photographies et entretiens disponibles.

8H. Instruction to counsel (annulment action)

Objet : Recours en annulation — autorisation du projet [nom]

Maître,

L'autorisation du projet [nom] à [lieu] a été [délivrée / publiée] le [date] ; nous en avons eu connaissance le [date].

Nous vous consultons en vue d'un **recours pour excès de pouvoir** devant le tribunal administratif de [ville].

Moyens envisagés : (i) **absence de décision d'acceptabilité environnementale**, ou décision antérieure de plus de cinq ans sans commencement des travaux ; (ii) **irrégularité de l'enquête publique**, le dossier n'ayant pas été mis à disposition malgré nos demandes écrites des [dates] ; (iii) **absence de prise en considération** des observations consignées au registre ; (iv) insuffisance de l'étude d'impact, notamment sur le bilan hydrique.

Nous pouvons produire : nos demandes écrites et les décharges ; les observations consignées ; les photographies de l'avis et du lieu de l'enquête ; l'avis technique de [expert] ; et les réponses de l'administration.

Merci de nous indiquer les **délais de recours** et l'opportunité d'une demande de sursis à exécution, les travaux devant débiter le [date].

[Date, signature]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite actual dates and references, and have counsel review anything heading to court. **Keep proof of everything you send** — the décharge or the registered-post receipt — because in Morocco the documented request that went unanswered is often the strongest fact in the file. Note the two dates that decide most cases: the **closing date of the register**, and the **short period for bringing an annulment action** once an authorisation appears. And keep public statements to documented facts.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. If you have limited time, the Moroccan system rewards a small number of precise, documented acts. In rough order of impact for the effort:

1. **Request the impact study in writing, and keep the receipt.** Send it to the developer, the environment department, and the commune (Section 8B). Either you get the document — which makes every later argument possible — or you get a silence that undermines the entire inquiry. Both outcomes help you.
2. **Find the register and record a specific, signed observation.** The law requires observations recorded there to be **duly taken into account**. Name your well, your plot, your orchard, the distance to your house. One precise observation is worth more than a page of general objection.
3. **Ask, in writing, whether a *décision d'acceptabilité environnementale* exists and on what date** (Section 8E). This single question determines the legal position, because **no project subject to an impact study may be authorised without it** — and if the decision is more than **five years** old with no works begun, a new study is required.
4. **Record how the inquiry was actually run.** Photograph the notice, the office, the opening hours, the register. If the file was not available, say so in writing the same day (Section 8C).
5. **Photograph the wells, the orchard, the coast, dated.**
6. **Contact an environmental association**, which can supply technical review and knows how the inquiry should have been conducted.
7. **If an authorisation appears, consult a lawyer immediately** (Section 8H) — the period for an annulment action is short.

If you do only the first three, you have created the documentary record, placed observations where the law obliges the committee to consider them, and established whether the authorisation has a lawful foundation. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Morocco's tilt is not that the law is weak — the acceptability requirement is genuinely strong — but that the process depends on documents and procedures the public cannot always reach.

What This Tilt DOES (and DOESN'T DO)

The tilt means impact studies are commissioned by developers and are not reliably made available; the inquiry is local, short, and can be run as a formality; committee proceedings and reasoning are not published; the administration is charged with attracting the investment it also regulates; and public protest around resource projects has at times been met with prosecutions. It does **not** close the doors: **authorisation is legally subordinate to the acceptability decision**; the population is entitled to consult the file and record **observations that must be taken into account**; **any person with an interest may complain about works, even stopped works**, and a court may **annul an authorisation founded on the absence of the acceptability decision**; an approval **lapses after five years**; the Constitution guarantees a **healthy environment** and **access to administrative information**; and the framework law establishes a **regime of environmental responsibility and control**.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Study obtainable, inquiry properly run, regional-scale project.** The strongest position: you can engage on the merits, fill the register, and hold the committee to its duty to consider.
- **Mixed.** The study is withheld or the inquiry is thin, but the project is not a national flagship. Weight shifts to the documentary record of refusals, the procedural defect, and the annulment route.
- **Entrenched.** A major national programme with strong backing, or an authorisation already granted and works begun. Assume the administrative route yields little; concentrate on the acceptability question, the five-year lapse if available, prompt legal advice, and — realistically — conditions, monitoring and mitigation rather than cancellation.

Documented Moroccan Dynamics

The record shows both the leverage and the gap. **The legal hinge is real** — authorisation of any project subject to an impact study is **subordinate to the *décision d'acceptabilité environnementale***, and the law contemplates that a court may **annul an authorisation** founded on its absence, on a complaint by any person with standing or interest, **even where works have stopped**. **The inquiry carries a genuine duty** — the affected population is entitled to consult the file and formulate observations and proposals in a **register**, which must be **duly taken into account** in the committees'

final examination, and the 2008 decrees that created **regional committees** for projects at or below **200 million dirhams** were explicitly intended to decentralise review and to bring the population's views into the evaluation. **But access has failed in practice** — an official evaluation noted the population's entitlement to consult the dossier and record observations, while an environmental association documented a coastal project whose impact study remained inaccessible despite repeated requests to both the developer and the authorities. **Time can help you** — an accepted project must begin within **five years** or undergo a new study. **And the constitutional frame has grown** — the right to a healthy environment was recognised for the first time in 2011, alongside the right of access to information held by the administration and the State's duty toward future generations. The lesson: **the entitlement exists; obtaining the paper is the fight.**

Assessment Framework — Determine Your Situation

Ask: is the project in the nomenclature? Which committee — regional or national? Is an inquiry open, and where is the register? Can we obtain the study, and if not, do we have written proof of refusal? Does an acceptability decision exist, and when was it issued? Have works begun, and is an authorisation published? Can we reach an association and a lawyer this month? The answers tell you whether to fight on the merits, on the procedure, or on the calendar.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Moroccan communities have used petitions, communal council interventions, sit-ins, marches and press campaigns, and these have at times been highly visible. But two cautions are serious and specific. **Public gatherings require compliance with the applicable rules**, and large local movements around resource and industrial projects have in some cases been followed by **prosecutions of participants and organisers**. And confrontation at project sites risks both prosecution and the loss of the legal high ground on which your case depends. Take advice, keep everything lawful and orderly, avoid site obstruction, and let the register, the written requests, and the administrative tribunal carry the argument — in this system they are genuinely sharper instruments.

Honest Assessment

Tilted fights are harder, and Morocco's particular difficulty is that the decisive document may be kept from you. But "harder" is not "hopeless": the law makes an authorisation without an acceptability decision annulable, gives the population a register whose contents must be considered, allows complaints even about halted works, and lets an approval expire after five years. Concentrate force where the tilt is weakest — **the written request, the register, and the acceptability question** — and get an association and a lawyer involved before the authorisation issues rather than after.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and in Morocco it tends to operate through opacity rather than open irregularity. Read your situation actor by actor, and publish documents rather than accusations — unproven public allegations carry real legal risk here.

The impact study and its author. The study is commissioned and paid for by the developer, and the public may never see it. Signs: a study that cannot be obtained, a water balance that assumes away the aquifer, cumulative effects unmentioned. Lever: the written access request and the refusal, plus independent technical review.

The inquiry as a formality. The most consequential weak point: an inquiry announced late, held far from the affected douars, with a register available only in office hours at a distant commune, is technically an inquiry and practically an exclusion. Signs: no visible notice, no file, an empty register. Lever: document it, in writing, on the day — this converts an inconvenience into a ground.

The committees. Their proceedings and reasoning are not published, so acceptability can appear without visible justification. Signs: acceptability granted despite substantiated observations that were never answered. Lever: the access request for the committee's opinion and the inquiry report, and the annulment action.

Sequencing of authorisations. Watch whether the sector authorisation preceded the acceptability decision, or relied on one long expired. Lever: the written question on dates, and the five-year rule.

Local administration and land. Where public, collective, or communal land is involved, examine how it was made available and on what terms, using communal deliberations and official publication.

How to act on it, safely. Document from the file, the Bulletin Officiel and communal records before you speak. Route genuine concerns to the **environment department**, the **Cour des comptes and its regional chambers** for public money, the national human rights institution and the mediation institution for administrative conduct — and above all into your **complaint and your court papers**, where they are protected and consequential. Do not publish unproven accusations about named individuals: it exposes the campaign legally and diverts attention from the documented procedural failures that are your strongest ground.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Morocco the timeline is shaped by two things: the **short local window of the enquête publique**, and the **long shadow of the acceptability decision**, whose existence, date, and validity govern everything that follows.

Realistic 12-Month Campaign Timeline

Weeks 1-3 (Access and baseline). - Send the **written request for the impact study** to the developer, the environment department and the commune, and keep the receipts (Section 8B). - Establish whether the project is in the **nomenclature**, and whether the **regional or national committee** will examine it. - Photograph the **wells, orchards, rangeland, coast and settlement**, dated. - Contact a **national or local environmental association**.

During the inquiry (short and local). - Locate the **notice and the register**, and publicise the closing date across the affected douars. - Organise so that as many households as possible record **specific, signed observations**. - **Document how the inquiry is run** — the notice, the location, the hours, whether the file was there — and report any failure in writing the same day (Section 8C).

Months 1-4 (Analysis and representations). - Obtain professional review of the study, above all the **water balance**. - Send **representations to the committee** seeking refusal or strict conditions, referring to the register (Section 8D). - Ask in writing whether a **décision d'acceptabilité environnementale** exists and on what date (Section 8E). - Broaden the coalition — neighbouring communes, downstream users, water-user associations, councillors.

Months 4-8 (Decision and legality). - Track the acceptability decision and any **sector authorisation**, and whether the authorisation file contained the decision. - Where works begin, lodge the **complaint concerning works under way** (Section 8F) — available even if the works have stopped. - If an authorisation issues without a valid acceptability decision, or after a defective inquiry, **instruct counsel promptly** for an annulment action, and ask about suspending execution (Section 8H).

Months 8-12 (Litigation and monitoring). - Support the case; sustain media at each stage. - If the project proceeds, obtain and monitor the **conditions**, and record non-compliance. - Keep the file complete: requests, receipts, register entries, photographs, technical review, and every administrative reply.

Beyond 12 months. - Watch the **five-year clock** on any acceptability decision: an approval not acted on lapses, and a new impact study becomes necessary. - Watch for **variations and extensions**, each of which may require fresh assessment. - Keep the association relationship and the archive alive for the next project.

Warning Signs — Act Early

A notice appearing at the commune; survey teams, drilling rigs or boundary markers; talk of an investment "convention" for the area; earthmoving beginning without any visible authorisation; a well level dropping; a project announced publicly with no study in sight. Each is a trigger to **send the written request that day and find the register** — because in Morocco the documentary record you create early is what makes everything later possible.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: request the study in writing and keep the receipts; fill the register with specific signed observations; document exactly how the inquiry was run; ask the acceptability question in writing; obtain independent water evidence; engage an association early and a lawyer before authorisation; and preserve every reply and silence. Losing campaigns: ask orally; let the register close unused; assume the authorisation is lawful; discover the annulment deadline too late; and

escalate to confrontation, forfeiting both safety and the legal ground.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Morocco takes several forms, and it is worth naming them so you recognise a win when you get one: - the **impact study released**, which alone changes what is possible; - **observations recorded and answered**, with conditions written into the project; - **environmental acceptability refused, delayed, or granted subject to strict conditions**; - a **sector authorisation withheld** because the acceptability decision was missing; - an **authorisation annulled** by the administrative tribunal, the outcome the law expressly contemplates where it rested on the absence of that decision; - a project that **lapses** because five years passed without works, requiring a new study; - a project **relocated or redesigned** around the wells, the palm grove, or the coast; - and a community that now holds a documentary record, a relationship with an association, and the knowledge of how the system works.

Moroccan communities and associations have pursued and achieved these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the study is being withheld, keep asking in writing — the refusal is building your case even as it frustrates you. If the register is open, that is the moment of maximum leverage and everything should go into it. If an authorisation has issued, the only question that matters this month is whether a valid acceptability decision underpins it, and how long you have to act. If the answer is that the project is lawful and properly processed, shift to conditions, monitoring, and the five-year clock — and to the next decision point, since variations and extensions reopen scrutiny. Continuing is often right; but escalating outside the law is not, and in Morocco it has cost communities dearly.

The Bottom Line

Morocco's system depends on documents the public cannot always obtain, an inquiry that can be run as a formality, and committees whose reasoning is not published. But the law also contains a clean and powerful hinge: **the authorisation of any project subject to an environmental impact study is subordinate to a décision d'acceptabilité environnementale**, and a court may **annul an authorisation founded on its absence** — on a complaint brought by **any person with standing or interest, even where the works have stopped**. Around that sit real supports: an **enquête publique** in which the affected population may consult the file and record **observations that must be duly taken into account**; **regional committees** examining projects at or below **200 million dirhams**, created expressly to decentralise review and bring the population's views into the evaluation; a **five-year lapse** that kills stale approvals; a constitutional **right to a healthy environment**, a duty toward **future generations**, and a **right of access to information held by the administration**; and a framework law establishing a **regime of environmental responsibility and control**. Communities that request the study in writing and keep the receipts, fill the register with specific signed observations, document precisely how the inquiry was conducted, ask in writing whether a valid acceptability decision exists, obtain independent evidence on water, and engage an association and a lawyer before the authorisation issues have obtained studies, forced conditions, delayed projects, and put authorisations in genuine legal jeopardy. No single step wins; the combination does. Start today by writing one letter asking for the study — and by finding out where the register is.